



2026:AHC:59887

HIGH COURT OF JUDICATURE AT ALLAHABAD

CONTEMPT APPLICATION (CIVIL) No. - 3250 of 2025

Devendra Nath Dubey

.....Applicant(s)

Versus

Rajan Singh Executive Engineer, Purvanchal
Vidyut Vitaran Nigam Limited

.....Opposite
Party(s)

Counsel for Applicant(s) : Hari Shankar, Mool Chandra Mishra
Counsel for Opposite Party(s) : Udit Chandra

Court No. - 9

HON'BLE ROHIT RANJAN AGARWAL, J.

1. The writ Court on 06.11.2024 while disposing of Writ-C No. 36499 of 2024 passed the following order:-

"1. Heard Sri Mool Chandra Mishra, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Nitesh Patel, holding brief of Sri Udit Chandra, learned counsel appearing for the respondent- Purvanchal Vidyut Vitaran Nigam Limited.

2. Present petition has been filed for the following reliefs:-

"A. Issue a writ, order or direction in the nature of Certiorari quash the due electricity bill of Rs. 1,48,790/- for the premises of petitioner upto 03.09.2024, called the record and quash the same.

B. Issue a writ, order or direction in the nature of Mandamus commanding/ directing the Respondent no.3 and 4 to make available the due electricity bill for the premises of petitioner, House No.217, Kayasthana, Machhalishahar, Jaunpur.

C. Issue a writ, order or direction in the nature of Mandamus commanding/directing the respondent authority to not disconnect the electric supply of the premises, House No.217, Kayasthana, Machhalishahar, Jaunpur in respect of connection no.0423449000 at present."

3. The petitioner is disputing the correctness of the electricity dues as shown against him.

4. Learned counsel appearing for the Purvanchal Vidyut Vitaran Nigam Limited submits that the petitioner has effective statutory remedy under

Clause 6.5 of the U.P. Electricity Supply Code, 2005 and he may file representation/ objection under the aforesaid provision.

5. In such view of the matter, the present petition stands disposed of with liberty to the petitioner to file representation under the aforesaid provision.

6. It is provided that in case such representation is filed within a period of 15 days from today, the same shall be considered and decided by the respondent no.3 i.e. Executive Engineer Purvanchal Vidyut Vitaran Nigam Limited Vidyut Vitaran Khan- Machhalishahar, Jaunpur on its own merits, preferably within a period of one month from the date of filing of the representation alongwith the certified copy of this order.

7. In the interest of justice, for a period of two months from today or till the disposal of the representation, no coercive action for recovery of the amount shall be made against the petitioner.

8. It is made clear that in case the representation or the objection is not filed within a period of 15 days from today, the protection granted hereinabove to the petitioner shall stand automatically vacated and the authority concerned shall be at liberty to proceed against the petitioner forthwith. "

2. A compliance affidavit has been filed on 01.09.2025 wherein it has been stated that already an order has been passed on 24.07.2025 deciding the claim of the applicant, copy of which has been appended as annexure-1 to compliance affidavit.

3. In view of said fact, as the order of writ Court has been complied with, the contempt application is rendered infructuous and stands dismissed.

4. Contempt notice stands discharged.

(Rohit Ranjan Agarwal,J.)

March 23, 2026
(V.S.SINGH)